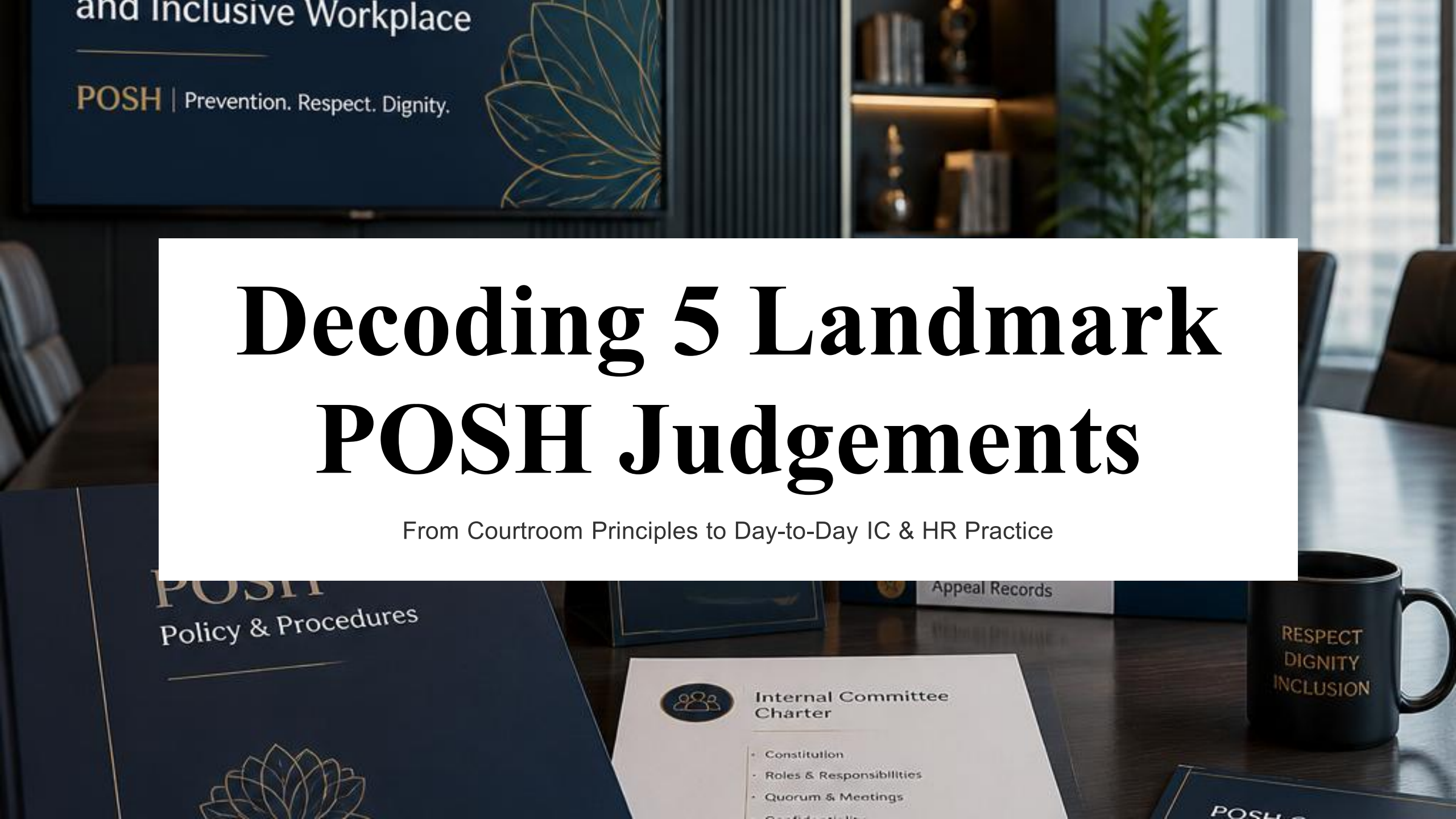


Decoding 5 Landmark POSH Judgements

From Courtroom Principles to Day-to-Day IC & HR Practice

Learning Outcomes

Learning progression and key objectives



1 **Understand Legal Principles**

Grasp the legal principle from each judgement—without treating every criminal or civil finding as a direct POSH rule.

2 **Translate Case Law into IC Behaviour**

Apply learnings to jurisdiction, intake, notice, evidence, hearing, confidentiality, report-writing, and recommendations.

3 **Identify Procedural Mistakes**

Spot common errors that can make an otherwise strong inquiry vulnerable to challenge.

4 **Build a Repeatable Workflow**

Create a fair, well-documented POSH case-handling workflow your IC can rely on consistently.

Important Legal Position: What This Deck Does

Understanding the scope, limitations, and operational mandate of these materials.

- **Implementation Training, Not Legal Advice**
  This deck is not a substitute for the POSH Act, POSH Rules, service rules, or case-specific legal opinion.

- **Tarun Tejpal: A Specific Lens**
  This is primarily a criminal sexual-assault appellate case. Lessons here apply to evidence assessment, survivor stereotyping, and power dynamics—not direct IC procedure.

- **IC Independence Is Non-Negotiable**
  ICs must decide each complaint on its own evidence and applicable law—independently and without predetermined conclusions.

The 5 Judgements: One-Line Learning

Key legal precedents and their practical implications

Judgement	One-line learning
Siddhesh Satpute v. SBI	First ask: does the alleged incident fall within the POSH Act's workplace jurisdiction?
State of Goa v. Tarun Tejpal	Do not judge credibility through stereotypes about how a survivor "should" behave; assess evidence objectively.
Shanta Kumar v. CSIR	Physical contact is not automatically sexual harassment; context and sexual undertones matter.
Akhil Thomas v. Kerala Social Security Mission	Natural justice is central: meaningful notice, access to materials, and a fair opportunity to respond matter.
Dr. Amit Kumar v. University of Delhi	Workplace conduct can extend into digital communication; fair procedure and documented reasoning matter.

Siddhesh Satpute v. SBI

Bombay High Court • 16 June 2026



What Happened

- An SBI employee was travelling to work in a shared public autorickshaw.
- A woman passenger alleged inappropriate touching and complained to his employer.
- The bank's Internal Committee took up the complaint.

The Ruling

- The Court held that this shared autorickshaw journey did not qualify as a workplace under the POSH Act.
- Neither employer had provided the transport.
- The Court set aside the IC's order because it lacked jurisdiction, meaning the legal authority to hear that complaint.

IC / HR Takeaway

Check and document the workplace connection before proceeding with an inquiry.

Satpute: What the IC Must Learn

Jurisdiction First, Not Last



Jurisdiction Map

Parties → Relationship → Location → Work connection → Employer-provided transport → Applicable policy.



Avoid Two Extremes

Do not auto-treat every commute/public incident as POSH; do not reject complaints solely because they occurred away from the office.



Intake Jurisdiction Checklist

1. Are parties covered? 2. Where did it occur? 3. Was transport provided/controlled by employer? 4. Is there a work connection? 5. Is another mechanism appropriate? 6. Record reasoning.

The decision depends on the facts and the legal definition of "workplace."

LEVITATE PEOPLESOFT

Akhil Thomas v. Kerala Social Security Mission

Kerala High Court • 17 March 2026

What Happened

- Two employees challenged an IC inquiry that led to adverse employment action, including one employee's termination.
- They said they had not received the complaint and had no proper opportunity to challenge the evidence.

The Ruling

- The Court found failures in providing the complaint and an opportunity to question the complainant and witnesses.
- It set aside the IC report and directed a fresh inquiry.
- It did not decide whether the harassment allegations were true or false.

IC / HR Takeaway

- A fair inquiry requires a meaningful opportunity to understand and answer the allegations.

Akhil Thomas v. Kerala Social Security Mission

Kerala High Court • 17 March 2026



Provide a clear, written notice with specific allegations.

Ensure the respondent fully understands the charges brought against them through formal documentation.



Share relevant documents and evidence with the respondent.

Transparency in evidence sharing is a foundational requirement for a fair trial.



Allow adequate time to respond and present their case.

Granting sufficient preparation time is essential to uphold the right to be heard.



Record all natural-justice steps in the case file.

Documentation of procedural compliance protects against allegations of bias or unfairness.

Natural justice means basic procedural fairness, including hearing the person's side before deciding against them.

An inquiry report should not merely say: ‘The respondent was given sufficient opportunity.’ It should show the opportunity.

Procedural Steps: What the IC Should Record

Comprehensive audit trail requirements for the Investigating Committee

Procedural Step	What the IC Should Record
Complaint served	Date + mode + acknowledgment
Reply invited	Deadline
Reply received	Date
Documents submitted	List
Witnesses proposed	List
Witnesses examined	Dates
Questions/clarifications	How handled
Additional evidence	Date supplied
Response to evidence	Opportunity given
Final hearing	Date + attendance
Representation	Considered

Shanta Kumar v. CSIR

Delhi High Court • 31 October 2017



Context and sexual undertones matter

Physical contact is not automatically sexual harassment; context and sexual undertones are critical factors.



Establish intent and environment

Ask whether the conduct had sexual undertones or created a hostile work environment.



Apply the reasonable person' standard

Determine if a reasonable, objective person would find the conduct offensive.



Document findings

Ensure the contextual analysis is clearly recorded in the final report.

Drafting an Inquiry Report That Is Defensible in Court

A Ten-Stage Framework for Documenting Internal Committee (IC) Reasoning

Stage	What the IC Should Document
1. Allegation	Precisely identify what the complainant alleges.
2. Evidence	What documents/witnesses support or contradict it?
3. Fact finding	What actually happened, based on the evidence?
4. Context	What was happening immediately before/during the incident?
5. Nature of conduct	Physical/verbal/non-verbal?
6. Sexual element	What makes the conduct sexual in nature?
7. Defence	What explanation did the respondent provide?
8. Analysis	Why does the IC accept/reject each material explanation?
9. Finding	Proved / Not proved, with reasons.
10. Other misconduct	If applicable, distinguish sexual harassment from other workplace misconduct.

Move beyond weak findings: “The complainant was pushed. Therefore, sexual harassment is not proved.” and transition to explicit, evidence-based reasoning.

State of Goa v. Tarun Jit Tejpal

Bombay High Court at Goa • 6 August 2026

What Happened

Allegations of sexual assault by a senior professional against a junior colleague during a work-related festival in Goa.

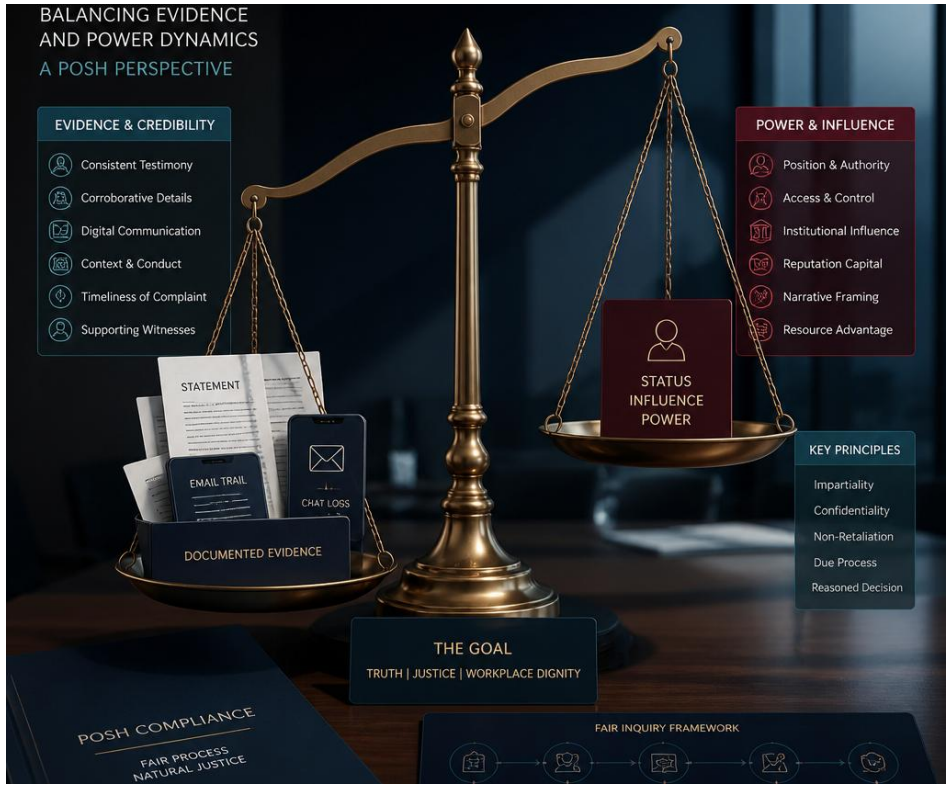
The Ruling

The Court reversed the 2021 acquittal, convicted Tejpal of rape and allied offences, and imposed a 10-year rigorous imprisonment sentence—strongly rejecting stereotypical expectations about survivor behaviour.

IC / HR Takeaway: Translate the court's principle into a documented step in your SOP—not merely a slide in training.

Tejpal: Survivor-Centric Evidence & Power Dynamics

A balanced two-lens framework for fair assessment



Assessing Evidence Fairly

Do **not** ask: “Why did she continue working?” or “Why didn’t she report immediately?” — these do not determine truth.

Do ask: Is the account coherent? What contemporaneous evidence corroborates or contradicts it?

Assess inconsistencies for **materiality** — not every discrepancy destroys credibility.

Separate character judgments from evidence relevant to the allegation.

Understanding Power Dynamics

Examine hierarchy, dependency, access, influence, and fear of retaliation.

Do **not** assume consent from silence, continued employment, or delayed reporting.

Do **not** assume lack of consent solely from hierarchy — establish the facts.

Document objective indicators of power imbalance and how they affect evidence, risk, and interim measures.

How to create an Inquiry Report that allows allows the IC to demonstrate that the inquiry was fair, reasoned and procedurally compliant.

Four Layers of Defensibility

A framework for structured investigation and reporting



Layer 1 — Jurisdiction

Who complained? Against whom? Why does the IC have jurisdiction? What is the alleged conduct? What provisions are potentially attracted?



Layer 2 — Procedural Fairness

Complaint received and served, response received, documents exchanged, witnesses examined, opportunities provided, submissions considered.



Layer 3 — Evidence Evaluation

Allegation → Evidence of complainant → Respondent's defence → Supporting evidence → Contradictory evidence → Credibility/reliability assessment → Finding.



Layer 4 — Reasoned Conclusion

Determine facts, weigh supporting vs. contradictory evidence, explain reasoning, apply standard, and establish the allegation.

Don't write "The complaint appears genuine, therefore allegation is proved." Instead, explain the factual determination, evidence weight, credibility assessment, and standard applied.

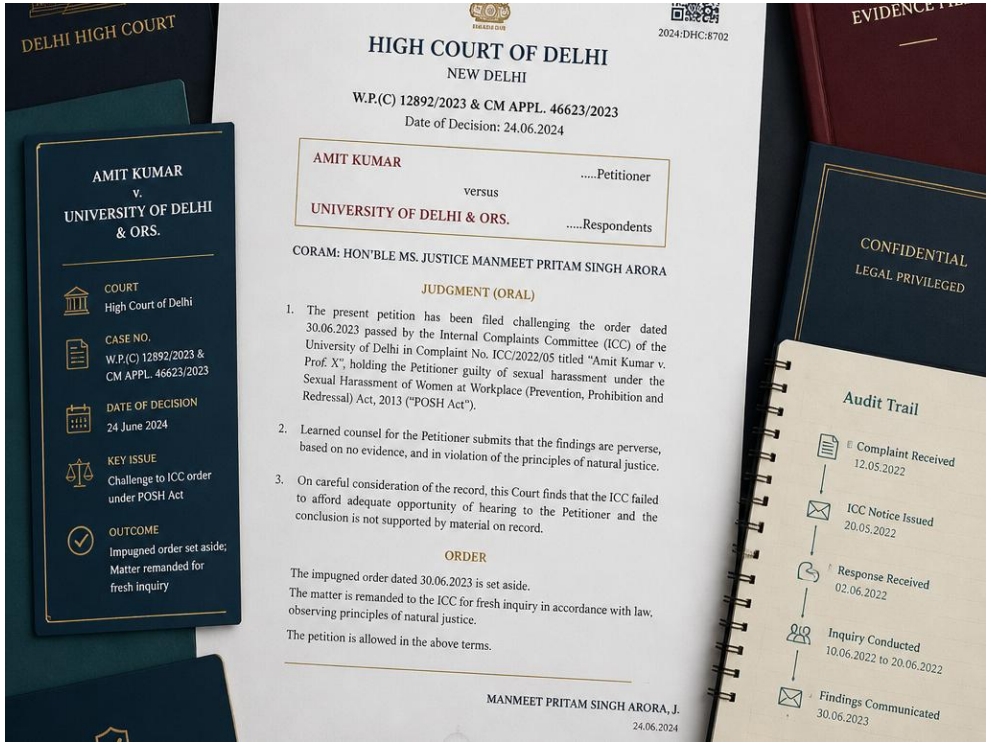
Cases and Core Lessons

Key legal precedents and their implications for Internal Committees

Case	Core Lesson
Siddhesh Satpute v. SBI	Jurisdiction: IC should know and operate only if it’s their jurisdiction.
Dr. Amit Kumar	Procedure: Evidence + Fair Procedure—Confidentiality and natural justice can coexist.
Shanta Kumar	Analysis: Substantive Analysis—Examine whether conduct is actually sexual in nature.
State of Goa v. Tejpal	Credibility: Credibility + Power Dynamics—Don’t judge the complainant through stereotypes.
Akhil Thomas	Natural Justice: Natural Justice—Give the respondent a fair opportunity to defend.

Dr. Amit Kumar v. University of Delhi & Workshop Summary

Delhi High Court • 17 July 2025



What Happened

- Students and a former student complained about an assistant professor's sexually inappropriate Facebook and WhatsApp messages.
- An IC inquiry led to disciplinary proceedings and compulsory retirement.
- He challenged the findings and the fairness of the process.

The Ruling

- The Court dismissed his challenge, leaving compulsory retirement in place.
- It found evidence supporting the findings and adequate opportunities for him to defend himself.
- It accepted the questioning procedure used in this university case.

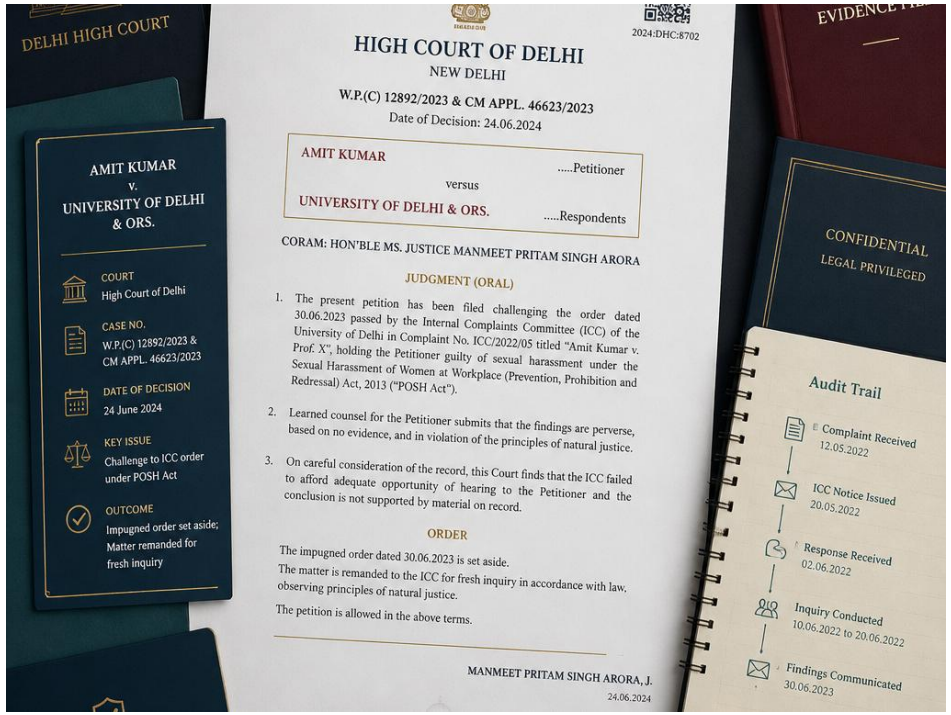
IC / HR Takeaway

- Digital communications can support a sexual-harassment finding when the evidence and inquiry process withstand scrutiny.

Workplace conduct can extend into digital communication—fair procedure and documented reasoning matter.

Dr. Amit Kumar v. University of Delhi & Workshop Summary

Delhi High Court • 17 July 2025



1. Examine the relationship and context

Consider how the messages connect to the workplace or educational relationship.

2. Preserve the conversation

As a practical step, retain relevant messages, dates and surrounding exchanges.

3. Allow meaningful questioning

The Court accepted written questions routed through the IC in this case. Apply the procedure relevant to your organisation.

4. Protect confidentiality and fairness

Handle sensitive information carefully while providing the material necessary for a proper defence.

Workplace conduct can extend into digital communication—fair procedure and documented reasoning matter.